

Melissa
**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

ADILIA PORWICK,

Petitioner,

-against-

AFFIRMATION

**THE CITY OF NEW YORK and P. O. DAMON
FORD,**

Respondents.
_____X

**MICHAEL T. RIDGE, ESQ., an attorney duly admitted to practice in the State
of New York, affirms the following under penalties of perjury:**

1. That I am the attorney for the Petitioners herein and as such am
fully familiar with all the facts and circumstances herein.
2. That I make this Affirmation in support of an application under
General Municipal Law Section 50-e Subdivision 5 for an order granting the petitioners
leave to serve after the statutory period, a Notice of Claim for damages against **THE
CITY OF NEW YORK**, resulting from personal injuries suffered by the Petitioner,
ADILIA PORWICK.

**FACTS OF THE UNDERLYING FALSE
ARREST IMPRISONMENT AS WELL AS THE
MALICIOUS PROSECUTION OF THE PETITIONER**

3. On August 14, 2009 at approximately 12:30 p.m., the Petitioner
was falsely arrested and falsely imprisoned by several members of the New York City
Police Department.

4. The Petitioner received serious injuries in the false arrest and false imprisonment which began on of August 14, 2009.

5. Your affirmant was retained on June 9, 2010 by the Petitioner to prosecute this action on her behalf. The criminal action in which the Petitioner was charged of was dismissed on May 27, 2010. The matter was dismissed as a result of the misconduct of members of the New York City Police Department. (Annexed hereto as Exhibit "B" is a copy of the Certificate of Disposition for **ADILIA PORWICK**.)

6. As set forth above, the Petitioner came in to see me on Wednesday, June 9, 2010 and this Petition is being filed as soon as possible after your affirmant was retained. (Annexed hereto collectively as Exhibit "C" is a sworn Affidavit of the Petitioner).

7. The Petitioner herein has no knowledge of legal matters. Additionally, the Petitioner was in fear for the loss of her liberty and of reprisals by the New York City Police Department, having already experienced an assault and battery, improper arrest, violation of his civil rights and malicious prosecution. Should be noted that plaintiff is a mother of five (5) children. She was overwhelmed with the fear of prison and being away from her children and it is this reason she was delayed in seeking counsel. Since Petitioner became aware of her option to bring a civil suit, she has acted immediately in procuring legal counsel. (A copy of said Proposed Notice of Claim is annexed hereto as Exhibit "A").

**THE PETITIONER'S DELAY IN TIMELY FILING
THE NOTICE OF CLAIM IN THIS CASE HAS
NOT PREJUDICED THE CITY OF NEW YORK**

8. A tort action against THE CITY OF NEW YORK can be prosecuted only if a Notice of Claim is made and served in compliance with General Municipal Law Section 50-e, which requires that a Notice of Claim be served within ninety days after the claim arises (General Municipal Law Section 50-e [1] [a]). The Courts are however vested with discretion to extend the service time and permit the Petitioner to file a late Notice of Claim. In the ordinary case, the application must be made before the expiration of the one year and 90 days Statute of Limitations (See General Municipal Law Section 50-e [5]; Section 50-i [1][c]).

9. Among the most critical of the factors that Courts have considered when exercising their discretion whether to permit the late filing of a Notice of Claim is whether the respondents was prejudiced by the delay in this case. It is respectfully submitted that the delay in timely serving the Notice of Claim in this case has not prejudiced THE CITY OF NEW YORK.

10. This matter is analogous to the recent action of Garces v. City of New York (18 Misc.3d 1111(A), 856 N.Y.S.2d 23 (Table) N.Y.Sup., 2008 January 04, 2008) Just as in Garces v. City of New York, the Petitioner in this matter failed to commence any civil proceedings or retain an attorney until after the disposition of the criminal matter. Though it is not explicitly stated as to what exactly was the reasonable excuse, Judge Victor found the petitioner presented a reasonable excuse for his failure to timely file a notice of claim for his claims of false arrest, false imprisonment, and negligence; and that the petitioner [in *Garces*] had sufficiently established all other

criteria necessary for the Court to exercise its discretion to allow a late service of the notice. The Court "especially noted that the City has not been prejudiced because it had timely actual knowledge of the facts constituting the claim since, among other things, its employees conducted a full investigation and were involved in the arrest, imprisonment, and prosecution of the case against the plaintiff." (18 Misc.3d 1111(A), 856 N.Y.S.2d 23 (Table) N.Y.Sup., 2008 January 04, 2008) (See also, Santana v. City, 183 A.D.2d 665 [1st Dept.1993] [trial Court's denial of motion to file a late Notice of Claim reversed because City had conducted full investigation of the shooting which gave rise to the claim]).

11. One of the factors a Court must consider in determining an application for leave to serve a late Notice of Claim is whether the public corporation obtained knowledge of the essential facts. Dickey v. County of Nassau, 65 A.D.2d 780, 410 N.Y.S.2d 333. Case law supports the claim of contention that the **CITY OF NEW YORK** had knowledge of the essential facts since the New York City Police Department was present at the scene of the incident and, in fact, actively perpetrated the false arrest and false imprisonment and the **CITY OF NEW YORK** through the New York City Police Department has been in possession of the records since the time of the incident and thus had actual notice of the claim and the underlying facts within.

12. The Court of Appeals held in Beary v. City of Rye, 44 N.Y.2d 398, 406 N.Y.2d 9, 377 N.E.2d 435 (1978), that the standards of Sec. 50(e)(a) of the General Municipal Law were modified by the Legislature so that the grounds upon which a Court may allow late filing were expanded and the time within which an application for such relief can be made was lengthened.

13. Petitioner certainly has a reasonable excuse for his delay in filing as he was concerned about his safety as well as being concerned with preserving his liberty and clearing of his name.

14. Over One (1) year and ninety days has not elapsed from the accrual of the Petitioner's cause of action and so the application is timely.

15. No previous application for this relief has been made to this Court or any other Court.

WHEREFORE, your affirmant respectfully requests that this Court grant the Petitioner's leave to serve the proposed Notice of Claim annexed hereto, and for such other and further relief as to this Court may deem just and proper.

Dated: Bronx, New York
June 21, 2010



MICHAEL T. RIDGE, ESQ.